

		<u>settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
6	Flores v. KML Services, Inc. 2024-01375907	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed in support of plaintiff's motion for preliminary approval of an \$485,000 class action and PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. In the March 5, 2026 order (ROA 104), the court ordered the parties to provide, <i>inter alia</i>, the estimated average individual PAGA payment. 3/5/26 Order (ROA 104) No. 4. This has not been done. 2. In the March 5, 2026 order, the court ordered plaintiff to provide his total compensation anticipated to be received (including for any individual claims and excluding any enhancement award). 3/5/26 Order (ROA 104) No. 5. Plaintiff states he anticipates receiving \$498.85 as his individual class payment and no individual PAGA payment. Does plaintiff anticipate receiving any compensation for any individual claims? 3. The "Released Parties" provision in paragraph 1.41 of the settlement agreement is unclear and appears to be missing words. To whom does subsection (iii) pertain? Is there a word missing between "parents, subsidiaries" in subsection (ii)? Is there a word missing between "subsidiaries;" and "(iii)"? Is there a word missing between "partners, managers"? 4. The parties should provide legal authority supporting the last sentence of paragraph 7.6 or that sentence should be removed. 5. In the March 5, 2026 order, the court stated that while it will not determine the amount of attorneys' fees to be awarded until final approval, the court is unlikely to approve attorneys' fees in excess of 30% of the gross settlement amount absent unique circumstances. The court stated that plaintiff's counsel should address in the supplemental filing whether any such unique circumstances exist here. Plaintiff's counsel states that counsel is not aware of any unique circumstances. Supp. Brief (ROA 111) at 7:7. The court preliminarily finds

		attorneys' fees not to exceed 30% of the gross settlement amount reasonable for this case. 6. In the March 5, 2026 order, the court noted that plaintiff's counsel seeks costs not to exceed \$25,000. The court stated that plaintiff's counsel should provide an itemized list of costs incurred to date, and that nonrecoverable items such as postage, mailing and legal research charges should not be included. 3/5/26 Order (ROA 104) No. 18. Plaintiff's counsel (Haines Law Group, APC) has nevertheless included postage and legal research costs. Haines Decl. (ROA 115) ¶ 3. These charges, as well as nonrecoverable copying charges, should be removed. 7. In the March 5, 2026 order, the court noted that plaintiff sought an enhancement award of \$10,000. The court stated that while it will not determine the amount of any enhancement award for plaintiff until final approval, the court is unlikely to approve an enhancement award in excess of \$2,500 absent unique circumstances. The court stated that plaintiff should address in the supplemental filing whether any such unique circumstances exist here. The circumstances described in plaintiff's supplemental brief (ROA 111 at 7:24-8:2) are not unique. Plaintiff also states in the supplemental brief that a \$7,500 enhancement award is reasonable "given Plaintiff's general release of all claims, including a waiver of rights under Civil Code section 1542." Supp. Brief (ROA 111) at 7:25-26. An enhancement award is not intended to serve as consideration for the release of additional claims, but rather to compensate class representatives for work done on behalf of the class, to make up for financial or reputational risk undertaken in bringing the action, and, in some circumstances, to recognize their willingness to act as a private attorney general. The court preliminarily finds an enhancement award not to exceed \$2,500 reasonable for this case. <u>As to the notice:</u> 8. The notice should be revised consistent with the above. 9. As stated above, the parties should provide legal authority supporting the last two sentences of section 4(3) of the notice or those sentences should be removed. 10. All of the first paragraph of section 7 after the first sentence should be removed. The remaining sentence should become the first sentence of the second paragraph. 11. The notice should advise the aggrieved employees that they are bound by the PAGA release even if they do not cash their checks. 3/5/26 Order (ROA 104) No. 38.
--	--	--

		12. Section 9 of the notice should state that the settlement administrator will post the judgment on the case website for at least 180 days. 3/5/26 Order (ROA 104) No. 39. 13. The method of submitting the exclusion form stated on the form is inconsistent with the settlement agreement and should be revised. 14. The method of submitting objection form stated on the form is inconsistent with the settlement agreement and should be revised. 15. As stated in the March 5, 2026 order (ROA 104, No. 40), a certified copy of the translated notice should be attached as exhibit to the proposed order. <u>As to the proposed order:</u> 16. The proposed order should be revised consistent with the above. 17. The parties did not submit a separate copy of the proposed order, but rather submitted the proposed order as an exhibit to the Sani Declaration (ROA 116). The proposed order should be submitted as a separate document. The settlement agreement, any amendment(s) thereto, and the notice packet (in all languages) should be attached to the proposed order as exhibits. The hearing on plaintiff's motion for preliminary approval of a class action and PAGA settlement is continued to <u>December 3, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. <i>See also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
7	Frye v. Progressive Casualty Insurance Company 2025-01477541	Off calendar.
8	Malecki v. Frisbie Management, Inc.	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u>